

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING VARIOUS SECTIONS OF CHAPTER 8.60, NUISANCES, OF TITLE 8, HEALTH AND SAFETY, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT HEREBY ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE WYOMING:

Section 1. That various sections of Chapter 8.60, Nuisances, of Title 8, Health and Safety, of the code of the City of Cheyenne, Wyoming, are hereby amended as set out in this ordinance.

8.60.142 ~~Appeal process; hearing~~ Hearing process.

A. The owner or occupant of the property subject to a notice of abatement may, within ten (10) business days from the date of service of the notice of abatement, file ~~a notice of appeal, in writing, in the office of the city development department director. A notice of appeal may not be filed electronically.~~ with the city clerk a written request for a hearing in accordance with Chapter 2.92, Administrative Hearing Procedure.

1. In the event a ~~notice of appeal request for hearing~~ request for hearing is not filed within the time specified in subsection A., of this section, the owner and occupant shall be deemed to have waived the right to ~~appeal a hearing~~ and shall be deemed to have admitted the validity of the notice to abate and the accuracy of all findings stated therein.

2. In the event a ~~notice of appeal request for hearing~~ request for hearing is filed within the time specified in subsection A., of this section, the ~~notice of appeal request for hearing~~ automatically stays the duty to comply with the notice to abate issued pursuant to Section 8.60.140 of this chapter ~~pending a decision in the Administrative Hearing Procedure.~~

~~B. Upon the filing of a timely notice of appeal, the board of adjustment shall conduct a hearing within forty-five (45) days after the date of filing of the notice of appeal. The board of adjustment shall issue a written notice of hearing, in the form provided by the Wyoming Administrative Procedure Act, to the appealing party, not less than ten (10) business days prior to the date of the hearing.~~

~~1. The hearing may be continued only with the consent of the board of adjustment and the appealing party.~~

~~C. The hearing shall be conducted in accordance with the contested case provisions of the Wyoming Administrative Procedure Act. The hearing shall also be subject to state laws applicable to public meetings.~~

~~D. Upon review of the evidence submitted at the hearing, the board of adjustment shall affirm or reverse the finding that a nuisance exists at the property at issue.~~

~~1. In the event the board of adjustment affirms the finding that a nuisance exists at or upon the property or properties that are the subject of the appeal, the board of adjustment shall enter a written order containing such findings and conclusions as shall be appropriate, setting forth the terms and conditions of abatement, and setting forth a schedule for the abatement of any such nuisance as is determined to exist, with a compliance date not to exceed thirty (30) days from the date of the written order. The written order shall be filed in the office of the development department director and served upon the parties to the appeal by mail.~~

~~2. In the event the board of adjustment reverses the finding that a nuisance exists at or upon the property or properties that are the subject of appeal, the board of adjustment shall enter a written order containing such findings and conclusions as shall be appropriate. The written order shall be filed in the office of the development~~

~~department director and served upon the parties to the appeal by mail.~~

~~E. — Any owner or occupant of property aggrieved by a decision of the board of adjustment may seek judicial review in the manner provided by the Wyoming Administrative Procedure Act and the Wyoming Rules of Appellate Procedure.~~

8.60.150 Abatement by the city.

In the event the nuisance is not abated within the time specified in Sections 8.60.141(A), 8.60.141(B) or ~~8.60.142(D)~~ 8.60.142(C) of this chapter, the city shall have the right to enter the property and abate the nuisance found thereon or authorize a private contractor or other designated agent to do so.

8.60.160 Costs of abatement; notice of assessment.

A. Upon completion of abatement by the city, the city shall complete a statement of costs. The statement shall include the costs of abatement and any other expenses incurred by the city, plus an administrative fee in the amount of fifty (50) percent of the abatement costs.

B. The city shall send written notice of the city's costs of the abatement to the owner of the property by certified mail, return receipt requested.

C. If abatement for junk, trash, or appliances is completed by the city using the city's sanitation services, the sanitation division is authorized to bill the costs of any such abatement, plus the administrative fee provided by subsection A. of this section, to the owner of the property that is the subject of the abatement.

D. If the city engages an independent contractor for abatement of grass, weeds, snow, or ice, the ~~police~~ police compliance department is authorized to bill the costs of the abatement plus the administrative fee provided by subsection A. of this section, to the owner of the property that is the subject of the abatement.

8.60.170 Nuisance files to be maintained.

The Cheyenne ~~police~~ police compliance department shall maintain a database record of all nuisance violations, and the nature of the violations as prescribed by state law and city code.

8.60.180 Collection of costs of abatement; filing of lien.

If an owner or occupant of property to which a statement of costs has been sent fails to pay the costs of abatement within thirty (30) days after notification, the city attorney may ~~upon the request of the chief of police,~~ file an appropriate lien with the county clerk and ex officio registrar of deeds for Laramie County. The lien shall contain the legal description of the property involved, the amount of the unpaid bill, and a notice that the city claims a lien for its costs of abatement. A lien for abatement costs may be foreclosed in accordance with the laws of the state of Wyoming. In addition, the city may pursue any remedies provided by law including assignment of the claim for costs of abatement to a collection agency.

8.60.200 Emergency abatement.

If a nuisance exists on any property in the city that presents a substantial risk to public health or safety and if the ~~chief of police~~ police compliance director, or designee, makes a determination that the nuisance must be abated on an emergency basis, the ~~chief of police~~ police compliance director may authorize the nuisance officer to immediately proceed to abate the nuisance without notice or hearing. The determination of costs shall be subject to the provisions of Section 8.60.160 of this chapter. ~~A notice of emergency abatement shall be served thereafter as soon as is reasonably practicable. The owner or occupant of a property subject to a notice of emergency abatement may, within ten (10) days from the date of service of the notice of emergency abatement, file with the city clerk a written request for a hearing in accordance with Chapter 2.92, Administrative Hearing Procedure. The emergency abatement is not stayed during the pendency of the Administrative Hearing Procedure.~~

Section 2. That sections currently existing in Chapter 8.60 not set out within this ordinance remain unchanged.

Section 3. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

Published: Wyoming Tribune-Eagle
